

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William MacLure	Team: Squad #06	CCRB Case #: 201808699	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/26/2018 8:00 PM	Location of Incident: Over the phone	18 Mo. SOL 11/10/2020	Precinct: 50		
Date/Time CV Reported Fri, 10/19/2018 2:03 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 10/19/2018 12:00 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Anthony Pepdjonovic	19746	959057	050 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Sabrina Cellucci	03319	953291	050 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Anthony Pepdjonovic	Abuse: Police Officer Anthony Pepdjonovic refused to provide his name to § 87(2)(b)	A . Unsubstantiated
B . POM Anthony Pepdjonovic	Abuse: Police Officer Anthony Pepdjonovic refused to provide his shield number to § 87(2)(b)	B . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On October 19, 2018, § 87(2)(b) walked into the CCRB and filed this complaint. On September 26, 2018, at approximately 5:35 p.m., § 87(2)(b) was arrested for § 87(2)(b) and released with a desk appearance ticket. At approximately 10:00 p.m., § 87(2)(b) called the stationhouse and spoke with PO Anthony Pepdjonovic. § 87(2)(b) asked PO Pepdjonovic why the officers did not conduct a further investigation into the incident that resulted in his arrest. § 87(2)(b) asked PO Pepdjonovic for his name and shield number, but PO Pepdjonovic refused to provide them and ended the call (**Allegations A and B: Abuse of Authority, unsubstantiated**). § 87(2)(g), § 87(4-b)

There is video footage of this incident.

§ 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Anthony Pepdjonovic refused to provide his name to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Anthony Pepdjonovic refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) (Board Review 01) called the 50th Precinct when he arrived home after being released with a DAT. § 87(2)(b) asked to speak with his arresting officer, PO Sabrina Cellucci, but was transferred to her partner PO Pepdjonovic, whose voice § 87(2)(b) recognized. § 87(2)(b) asked why the officers did not document his allegation that the superintendent for his building threatened him with a glass bottle. PO Pepdjonovic told § 87(2)(b) that there was no proof of this crime. § 87(2)(b) asked PO Pepdjonovic for his name and shield number. PO Pepdjonovic told § 87(2)(b) that he was “not doing this” and ended the call without providing his name or shield number.

PO Pepdjonovic (Board Review 02) was assigned to Sector A with PO Cellucci. PO Pepdjonovic was present for § 87(2)(b) arrest and assisted PO Cellucci in processing § 87(2)(b). PO Pepdjonovic did not recall speaking with § 87(2)(b) on the phone after he was released with a DAT. PO Pepdjonovic denied that he ever refused to provide his name and shield number to § 87(2)(b).

There was no video or audio recordings of this incident.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)

Civilian and Officer CCRB Histories

- This was the first CCRB complaint to which § 87(2)(b) has been a party. § 87(2)(b)
§ 87(2)(g)
- PO Pepdjonovic has been a member of the service for three years and has been a subject in three CCRB complaints and five allegations, none of which were substantiated. § 87(2)(b)
§ 87(2)(g)

Mediation, Civil and Criminal Histories

- On December 12, 2018, this case was sent to mediation and on January 31, 2019, the case was returned to investigation as PO Pepdjonovic rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer:

Signature

Print Title & Name

Date